

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

AS TO THE ADMISSIBILITY OF

Application no. 9486/05 and 59 other applications
Murat ARSLAN and others
against Turkey

The European Court of Human Rights (Second Section), sitting on 25 January 2011 as a Chamber composed of:

Françoise Tulkens, *President,*
Ireneu Cabral Barreto,
Danutė Jočienė,
András Sajó,
Nona Tsotsoria,
Işıl Karakaş,
Kristina Pardalos, *judges,*

and Françoise Elens-Passos, *Deputy Section Registrar,*

Having regard to the above applications,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by some of the applicants,

Having deliberated, decides as follows:

THE FACTS

A. The circumstances of the case

The applicants are Turkish nationals and at the time of lodging their applications they were serving their prison sentences in various establishments. The dates of introduction of the applications appear in the table below. The names and dates of birth of the applicants, as well as the names of their representatives appear in the appendix.

All of the applicants were found guilty of breaching prison order by decisions of the respective disciplinary boards of prisons in which they are held. Pursuant to the Regulations on the administration of penitentiary institutions and the execution of sentences, various types of disciplinary sanctions were imposed on them. Their appeal requests were rejected respectively by the Enforcement Judges and the Assize Courts, on the basis of the case file, without hearing the applicants or their lawyers, pursuant to Law No. 4675 on Enforcement Judges, dated 16 May 2001.

The details of the applications as well as the complaints raised by the applicants appear in the table below.

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
9486/05 Murat Arslan v. Turkey	Pressing emergency buttons in his cell and refusing to participate in social activities, prison workshops	15-day ban on correspondence	29 December 2004	26 January 2005	22 February 2005	Articles 6 and 8
9501/05 Çelik v. Turkey	Pressing emergency buttons in his cell and refusing to participate in social activities and prison workshops	15-day ban on correspondence	29 December 2004	26 January 2005	22 February 2005	Articles 6 and 8
9508/05 Akcan v. Turkey	Pressing emergency buttons in his cell and refusing to participate in social activities, prison workshops	15-day ban on correspondence	29 December 2004	26 January 2005	22 February 2005	Articles 6 and 8
12794/05 Avşar v. Turkey	Pressing emergency buttons in his cell and refusing to participate in social activities and prison workshops	15-day ban on correspondence	29 December 2004	26 January 2005	7 March 2005	Article 6
12797/05 Duman v. Turkey	Pressing emergency buttons in his cell and refusing to participate in social activities and prison workshops	15-day ban on correspondence	29 December 2004	26 January 2005	1 March 2005	Articles 6 and 8

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
15082/06 Mehmet Reşit Arslan v. Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month ban on correspondence	3 September 2003	1 October 2003	31 March 2004	Articles 6, 8, 10, 14
34779/06 Akoğlu v. Turkey	Writing a letter to the Ministry of Justice, in which he praised the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed.	45-day ban on workshops and sports activities	26 April 2006	8 June 2006	20 June 2006	Article 8
1035/07 Güneş v. Turkey	Writing a petition to the prison administration to protest the detention conditions of Abdullah Öcalan	1-month ban on correspondence and telephone	18 September 2006	9 October 2006	22 December 2006	Articles 3, 6, 7, 8, 10
5545/07 Tekmenüray v. Turkey	2-day hunger strike	45-day ban on prison workshops and sports activities	20 September 2006	4 October 2006	6 December 2006	Articles 8 and 10
26620/07 Menekşe v. Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month ban on certain activities	11 September 2006	9 October 2006	16 April 2007	Articles 9, 10
26732/07 Çiftçi and Altay v. Turkey	3-day hunger strike	2-month ban on certain activities	26 December 2006	12 February 2007	18 June 2007	Articles 3, 6, 10, 14
27593/07 Demirhan v. Turkey	Writing a petition to the Ministry of Justice supporting fellow prisoners on hunger strike	1-month deprivation of any paid work	26 December 2006	9 March 2007	20 June 2007	Articles 6 and 10
28163/07 Açıkel v. Turkey	Pressing emergency buttons in his cell and banging on the door of the cell	1-month ban on correspondence	20 December 2006	31 January 2007	02 July 2007	Articles 6, 8, 10, 13, 14, 17, 18
29154/07 Baltacı v. Turkey	Writing a petition to the public prosecutor, the Ministry of Justice and the Ministry of Health in support of Abdullah Öcalan	1-month ban on certain activities	19 March 2007	9 May 2007	7 June 2007	Articles 3, 5, 6, 7, 8, 10
29370/07 Ayçiçek v. Turkey	Refusal to use infirmary	1-month ban on correspondence	12 March 2007	24 April 2007	2 July 2007	Articles 2, 3, 6, 9, 10, 14
30967/07 Erdem v. Turkey	Refusal to use infirmary	1-month ban on correspondence	12 March 2007	24 April 2007	9 July 2007	Articles 1, 2, 3, 5, 6, 9, 10, 14

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
31506/07 Kocatürk v. Turkey	Banging on the doors of his cell	3-month ban on receiving visitors	18 September 2006	6 December 2006	8 June 2007	Articles 6
31603/07 Canavar v. Turkey	Writing a petition to the public prosecutor, the Ministry of Justice and the Ministry of Health in support of Abdullah Öcalan	1-month ban on certain activities	19 March 2007	9 May 2007	7 July 2007	Articles 3, 5, 6, 7, 8, 10
31606/07 Dursun v. Turkey	Writing a petition to the public prosecutor, the Ministry of Justice and the Ministry of Health in support of Abdullah Öcalan	1-month ban on certain activities	19 March 2007	9 May 2007	7 July 2007	Articles 3, 5, 6, 7, 8, 10
31608/07 Durukan v. Turkey	Refusal to use infirmary	1-month ban on correspondence	12 March 2007	24 April 2007	11 July 2007	Articles 2, 3, 5, 6, 9, 10, 14
32385/07 Nevzat Demir v. Turkey	Refusal to use infirmary	1-month ban on correspondence	12 March 2007	24 April 2007	16 July 2007	Articles 1, 2, 3, 5, 6, 9, 10, 14
33898/07 Türk v. Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month ban on certain activities	11 September 2006	9 October 2006	16 April 2007	Articles 9, 10
33911/07 Kaya v.Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month ban on certain activities	11 September 2006	9 October 2006	16 April 2007	Articles 9, 10
36232/07 Gurban and 2 others v. Turkey	Chanting slogans and pressing emergency buttons in his cell	70-day ban on receiving visitors	12 December 2006	11 January 2007	11 July 2007	Articles 6 and 13
36258/07 Gurban and 5 others v. Turkey	Chanting slogans, banging on his cell doors	60-day ban on receiving visitors	7 December 2007	29 January 2007	25 July 2007	Articles 6, 8, 9, 10, 13
36481/07 Canpolat v. Turkey	Writing a petition to the public prosecutor, the Ministry of Justice and the Ministry of Health in support of Abdullah Öcalan	1-month ban on certain activities	19 March 2007	9 May 2007	7 July 2007	Articles 3, 5, 6, 7, 8, 10
53832/07 Tarak v. Turkey	Making false accusations against prison guards	45-day ban on certain activities	7 September 2007	19 October 2007	7 November 2007	Articles 6, 7, 10, 11, 13
56577/07 Dalaba v. Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	11 days' solitary confinement	26 March 2007	22 May 2007	14 November 2007	Articles 1, 6, 7, 9, 10

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
460/08 Gurban and 4 others v. Turkey	Chanting slogans and pressing emergency buttons in his cell	90-day ban on receiving visitors	20 December 2006	31 January 2007	25 July 2007	Articles 6, 8, 9, 10, 13
463/08 Gurban and 5 others v. Turkey	Chanting slogans, pressing emergency buttons in his cell and banging on cell doors	90-day ban on receiving visitors	23 January 2007	2 March 2007	25 July 2007	Articles 6, 8, 9, 10, 13
841/08 Gurban v. Turkey	Using offensive language about prison staff	70-day ban on correspondence and telephone calls	1 December 2006	11 January 2007	11 July 2007	Articles 6, 13, 14
14353/08 Bayar and 3 others v. Turkey	Writing a petition to the Ministry of Justice against the prison administration	3-month ban on certain activities	5 October 2007	2 January 2008	11 March 2008	Articles 6, 8, 9, 10, 13
14629/08 Ceyhan v. Turkey	Resisting search	2-month ban on receiving visitors	30 October 2007	31 January 2008	18 March 2008	Article 6 and 8
20073/08 Ekinci v. Turkey	Writing a petition to the Ministry of Justice against the prison administration	3-month ban on certain activities	5 October 2007	2 January 2008	19 March 2008	Articles 6, 8, 9, 10, 13
24776/08 Bazi Aslan and 14 others v. Turkey	Chanting slogans	a) 2-month ban on correspondence b) 1-month ban on receiving visitors	21 September 2007	29 November 2007	8 May 2008	Articles 6 and 13
25489/08 Binay v. Turkey	a) Resisting search b) Resisting search c) Resisting search	a) 45-day ban on receiving visitors b) 1-month ban on receiving visitors c) 2-month ban on receiving visitors	a) 3 September 2007 b) 30 October 2007 c) 30 November 2007	a) 7 November 2007 b) 8 January 2008 c) 31 January 2008	21 May 2008	Articles 3, 6, 8
25497/08 Abı v. Turkey	Making false accusations against prison administration	30-day ban on correspondence	13 June 2007		22 May 2008	Articles 3, 6, 7, 10, 13
25961/08 Aladağ v. Turkey	Refusing to enter his cell	2-month ban on receiving visitors	7 February 2008	25 March 2008	26 May 2008	Articles 6, 8, 9, 10, 13
26151/08 Aydın v. Turkey	Writing a petition to the Ministry of Justice against the prison administration	3-month ban on certain activities	5 October 2007	2 January 2008	26 May 2008	Articles 6, 8, 9, 10, 13

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
27608/08 Alsaç and others v. Turkey	Chanting slogans, forming groups for disorderly conduct and causing fear, anxiety and panic in the prison	3-month ban on correspondence, 3-month ban on certain activities and 2-month ban on receiving visitors	18 September 2007	28 November 2007	27 May 2008	Articles 6 and 13
27892/08 Bayar v. Turkey	2-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month deprivation of any paid work	1 February 2008	3 April 2008	3 June 2008	Articles 6, 8, 9, 10, 13
34205/08 Ceyhan v. Turkey	Resisting prison guards and chanting slogans	1-month ban on receiving visitors	30 October 2007	13 December 2007	18 March 2008	Article 8
35219/08 Mehmet Reşit Arslan v. Turkey	Possessing sketch of the prison and list of the prison staff	2-month ban on correspondence	2 November 2007	10 December 2007	3 June 2008	Articles 2, 6, 7, 9, 10, 13, 14, 17 and Article 1 of Protocol No. 12 to the Convention
35304/08 Adıgüzel v. Turkey	Writing a petition to the Ministry of Justice against the prison administration	3-month ban on certain activities	5 October 2007	2 January 2008	26 June 2008	Articles 3, 6, 13
36346/08 Eren and others v. Turkey	Chanting slogans, forming groups for disorderly conduct and causing fear, anxiety and panic in the prison	3-month ban on correspondence, 3-month ban on certain activities and 2-month ban on receiving visitors	18 September 2007	28 November 2007	24 April 2008	Articles 6, 8, 9, 10, 13
36967/08 Günana v. Turkey	Launching a hunger strike to protest against the detention conditions of Abdullah Öcalan	3-month ban on certain activities	29 August 2007	8 November 2007	9 May 2008	Articles 6, 10, 13, 17, 18
37175/08 Kulik and Aybergüler v. Turkey	Chanting slogans and verbally objecting to search **Only for the second applicant** Insulting prison guards	2-month ban on correspondence and 2-month ban on receiving visitors **Only for the second applicant** 5 days' solitary confinement	2 November 2007	2 January 2008	30 June 2008	Articles 6 and 13

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
38894/08 Dalaba v. Turkey	Praising the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed	12 days' solitary confinement	28 March 2008	7 May 2008	17 July 2008	Articles 1, 6, 7, 9, 10
38907/08 Gürbüz v. Turkey	Writing a petition to the Ministry of Justice against the prison administration	3-month ban on certain activities	5 October 2007	2 January 2008	26 June 2008	Articles 3, 6, 13
39027/08 Akalp v. Turkey	Hunger strike	1-month ban on correspondence	6 December 2007	29 January 2008	29 July 2008	Articles 6, 8, 9, 10, 13
41700/08 Aladağ v. Turkey	3-day hunger strike to protest against the detention conditions of Abdullah Öcalan	3-month ban on certain activities	31 March 2008	27 May 2008	28 July 2008	Articles 6, 8, 9, 10, 13
41706/08 Aladağ v. Turkey	3-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month deprivation of any paid work	21 January 2008	3 April 2008	23 July 2008	Articles 6, 8, 9, 10, 13
45227/08 Çalan v. Turkey	Writing a petition to the Ministry of Justice in support of Abdullah Öcalan	1-month ban on correspondence	26 December 2007	21 April 2008	23 June 2008	Articles 8, 10, 13
45325/08 Avşar v. Turkey	Writing a petition to the public prosecutor and in the letter praising the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed.	45-day ban on prison workshops and sports activities	9 May 2006	8 June 2006	6 July 2006	Articles 6, 8, 9, 10
45873/08 Bazi Aslan and 13 others v. Turkey	Writing letters to the national authorities, in which he praised the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed.	**For the applicants Akbaba, Aydınalp, Elyakut, Özoğlu, Demir** 11 days' solitary confinement **For the rest of the applicants** 12 days' solitary confinement	26 December 2007	27 February 2008	20 August 2008	Articles 6, 7, 9, 10, 13
45996/08 Aydın v. Turkey	3-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month deprivation of any paid work	1 February 2008	3 April 2008	26 May 2008	Articles 6, 8, 9, 10, 13

Application no. and case name	Disciplinary Act committed	Type of sanction imposed on the applicant	Date of Board's decision	Date of final decision delivered by the Assize Court	Introduction Date of the application	Complaints raised by the applicant
46012/08 Başak v. Turkey	2-day hunger strike; writing a petition to the Ministry of Justice in which he praised the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed.	3-month ban on certain activities	5 June 2008	11 July 2008	27 August 2008	Articles 1, 6, 7, 9, 10 and Article 1 of Protocol No. 12 to the Convention
46446/08 Adıyaman v. Turkey	A hunger strike and writing a letter to the Ministry of Justice in which he praised the imprisoned leader of the PKK, Abdullah Öcalan by using the honorific "sayın", meaning esteemed	3-month ban on certain activities	5 June 2008	25 July 2008	9 September 2008	Articles 6, 7, 10
49761/08 Özkan and Others v. Turkey	a) Passive resistance to prison administration b) Launching hunger strike c) **Only for Deniz Tepeli**; Using offensive language to prison staff, misusing prison property	a) 3-month ban on receiving visitors b) 2-month ban on correspondence and communication tools c) **Only for Deniz Tepeli**; 1-month ban on certain activities	a) 18 April 2008 b) 26 November 2007 c) 23 January 2008	a) 4 June 2008 b) 3 March 2008 c) 2 April 2008	18 September 2008	Articles 3, 6, 8, 13, 14, 17 and 18
50051/08 Dündar and Kanat v. Turkey	3-day hunger strike to protest against the detention conditions of Abdullah Öcalan	1-month deprivation of any paid work	16 January 2008	3 April 2008	3 October 2008	Articles 6 and 13

B. Relevant domestic law and practice

A description of the relevant domestic law may be found in *Gülmez v. Turkey*, no. 16330/02, §§ 13-15, 20 May 2008 and *Aydemir and others* (dec.), nos. 9097/05, 9491/05, 9498/05, 9500/05, 9505/05, and 9509/05, 9 November 2010.

THE LAW

Given the similarity of the applications, as regards both fact and law, the Court deems it appropriate to join them.

The applicants mainly argued that they did not have a fair hearing during the disciplinary proceedings in question as the domestic courts had delivered their decisions on the basis of the case files and that they had been deprived of their right to defend themselves in person or through the assistance of a lawyer. In this respect, most of the applicants relied on Article 6 of the Convention. The remaining applicants, based on the same facts and raising the same complaint, merely cited Articles 1, 2, 3, 5, 7, 8, 9, 13, 14, 17, 18, and Article 1 of Protocol No. 12. The Court notes that although the applicants referred to different Articles of the Convention, they all complained about the unfairness of the disciplinary proceedings in dispute. It will thus examine these complaints under Article 6 of the Convention.

Furthermore, some of the applicants (as indicated in the table above), alleged a violation of Article 8 in respect of the ban on their right to correspondence and/or visiting rights, or a violation of Article 10, stating that the disciplinary sanctions imposed on them had violated their right to freedom of expression.

The Court notes that by Law no. 6008 of 22 July 2010, Section 6 of the Law on Enforcement Judges was amended so as to allow prisoners charged with disciplinary offences to defend themselves in person or through legal assistance. It further observes that the new law also provides a remedy for all those prisoners who had previously been charged with disciplinary offences to file a fresh objection with the Enforcement Judge concerning their previous sentences within six months following the adoption of this law. Such requests would be examined by the Enforcement Judge in the light of the new procedure.

The Court has already examined that remedy and found it effective in respect of complaints for applications concerning prison disciplinary sanctions. In particular, it considered that the new remedy was accessible and provided reasonable prospects of success (see, *Aydemir and others*, cited above). In assessing the effectiveness of the new remedy, the Court had regard to sample decisions submitted by the Government, according to which upon fresh objections, the Enforcement judges had re-evaluated the evidence in the case file and annulled the disciplinary sanctions in dispute, clearing the respective prisoners of all consequences of the offence.

Considering that there are no exceptional circumstances capable of exempting the present applicants from the obligation to exhaust domestic remedies, the Court concludes that they should have availed themselves of the new remedy offered by Law No. 6008 of 22 July 2010.

Therefore, the applications must be rejected under Article 35 §§ 1 and 4 of the Convention for non-exhaustion of domestic remedies.

For these reasons, the Court unanimously

Decides to join the applications;

Declares the applications inadmissible.

Françoise Elens-Passos Deputy Registrar	Françoise Tulkens President

APPENDIX

	Application no.	Name of Applicant	Date of birth	Present Address	Name of Representative
1	**9486/05**	Murat Arslan	1979	İzmir Buca	Mr Zeynal Değirmenci İzmir
2	**9501/05**	Abdussamat Çelik	1974	İzmir Buca F-type Prison	No representative
3	**9508/05**	Faysal Akcan	1978	İzmir Buca F-type Prison	Mr Zeynal Değirmenci İzmir
4	**12794/05**	Hüseyin Avşar	1970	Buca Kırıklar F-type prison	No representative
5	**12797/05**	Suat Duman	1970	İzmir Buca F-type Prison	Mr Murat Vargün Troisdorf
6	**15082/06**	Mehmet Reşit Arslan	1966	Ankara F-type Prison	Ms Eren Keskin İstanbul
7	**34779/06**	Murat Akoğlu	1975	Mardin E-Type Prison	No representative
8	**1035/07**	Yakup Güneş	1973	Muş E-Type Prison	No representative
9	**5545/07**	Mehmet Şirin Tekmenüray	1970	Izmir Buca F-Type Prison	Mr Ömer Güneş İstanbul
10	**26620/07**	Faruk Menekşe	1979	Diyarbakır D-Type Prison	Mr Muharrem Şahin Diyarbakır
11	**26732/07**	Mehmet Çiftçi and Aytunç Altay	1952 and 1951	Edirne F-Type Prison	Mr Fazıl Ahmet Tamer İstanbul
12	**27593/07**	Baysal Demirhan	1977	Tekirdağ F-Type Prison	Mr F. Ahmet Tamer and Ms Gülizar Tuncer İstanbul
13	**28163/07**	Barış Açıkel	1976	Kocaeli Kandıra F-Type Prison	Ms Gül Altay İstanbul
14	**29154/07**	Resul Baltacı	1972	Siirt E-Type Prison	Mr Mesut Beştaş Diyarbakır
15	**29370/07**	Mehmet Ayçiçek	1966	Elbistan E-Type Prison	Ms Ruhşen Doğan Yıldız İstanbul
16	**30967/07**	Felemez Erdem	1960	Elbistan F-Type Prison	Ms Ruhşen Doğan Yıldız İstanbul
17	**31506/07**	Resul Kocaturk	1965	Tekirdağ F-Type Prison	Ms Gülizar Tuncer İstanbul
18	**31603/07**	Selahattin Canavar	1969	Muş E-Type Prison	Mr Mahmut Şakar Köln
19	**31606/07**	Mehmet Dursun	1973	Muş E-Type Prison	No representative

	Application no.	Name of Applicant	Date of birth	Present Address	Name of Representative
20	**31608/07**	Rahim Durukan	1974	Elbistan E-Type Prison	Ms Ruhşen Doğan Yıldız İstanbul
21	**32385/07**	Nevzat Demir	1972	Elbistan E-Type Prison	Ms Zeynep Solak Malatya
22	**33898/07**	Şerafettin Türk	1966	Diyarbakır D-Type Prison	Mr Muharrem Şahin Diyarbakır
23	**33911/07**	Süleyman Kaya	1980	Diyarbakır D-Type Prison	Mr Muharrem Şahin Diyarbakır
24	**36232/07**	a) Emin Gurban b) Mahmut Ulusan c) Abdulvahap Kavak	a) 1966 b) 1970 c) 1962	Kocaeli F-Type Prison	Mr Mehmet Erbil İstanbul
25	**36258/07**	a) Emin Gurban b) Mahmut Ulusan c) Abdulvahap Kavak d) Engin Babayiğit e) Mehmet Deniz Güzel f) Önder Bitirgiç	a) 1966 b) 1970 c) 1962 d) 1983 e) 1972 f) 1984	Kocaeli F-Type Prison	Mr Mehmet Erbil İstanbul
26	**36481/07**	Nuri Canpolat	1969	Muş E-Type Prison	No representative
27	**53832/07**	Cihan Deniz Tarak	1976	Kocaeli F-Type Prison	Ms Filiz Kılıçgün Yeşil İstanbul
28	**56577/07**	Ali Dalaba	1974	Bolu F-Type Prison	Ms Menal Ayçiçek Diyarbakır
29	**460/08**	a) Emin Gurban b) Mahmut Ulusan c) Abdulvahap Kavak d) Engin Babayiğit e) Mehmet Deniz Güzel	a) 1966 b) 1970 c) 1962 d) 1983 e) 1972	Kocaeli F-Type Prison	Mr Mehmet Erbil İstanbul
30	**463/08**	a) Emin Gurban b) Mahmut Ulusan c) Abdulvahap Kavak d) Engin Babayiğit e) Mehmet Deniz Güzel f) Önder Bitirgiç	a) 1966 b) 1970 c) 1962 d) 1983 e) 1972 f) 1984	Kocaeli F-Type Prison	Mr Mehmet Erbil İstanbul
31	**841/08**	Emin Gurban	1966	Kocaeli F-Type Prison	Mr Mehmet Erbil İstanbul
32	**14353/08**	a) Ruşen Bayar b) Zazan Döner c) Resul Özalp d) Mehmet Aladağ	a) 1972 b) 1978 c) 1977 d) 1974	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
33	**14629/08**	Azimet Ceyhan	1970	Kocaeli F-Type Prison	No representative
34	**20073/08**	Mehmet Emin Ekinci	1986	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul

	Application no.	Name of Applicant	Date of birth	Present Address	Name of Representative
35	**24776/08**	a) Bazi Aslan b) Abdulbaki Dal c) Diyaveddin Turhan d) Kasım Elçi e) Medet Sever f) Savaş Karaman g) Nimetullah Tunç h) Muhittin Altın i) Murat Arslan j) Muhammet Zana Mazak k) Bayramlı l) Velat Esen m) Mehmet Murat Sözeri n) Vedat Bakır o) Şehmur Özsubaşı	a)1976 b) 1967 c) 1973 d) 1968 e) 1966 f) 1969 g) 1976 h) 1974 i) 1976 j) 1984 k) 1975 l) 1973 m) 1963 n) 1971 o) 1972	Kırıkkale F-Type Prison	Mr Murat Vargün Troisdorf
36	**25489/08**	Ercan Binay	1971	Kocaeli F-Type Prison	No representative
37	**25497/08**	Ebedin Abı	1970	Van F-Type Prison	Mr Erhan Aksoy Van
38	**25961/08**	Mehmet Aladağ	1974	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
39	**26151/08**	Mehmet Faruk Aydın	1973	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
40	**27608/08**	a) Dalyan Alsaç b) İshak Aybergüler c) Cahit Yaşar d) Ramazan Kaya e) Engin Kılıç f) Fevzi Abo g) Mahmut Cengiz h) Mehmet Aladağ i) Abdullah Çolak j) Veysel Dereli k) Yunus Akbal l) Ahmet Koç m) Mehmet Ergezen n) Nusret İzci o) Mehmet Abay p) Hanefi Kuzu q) İhsan Akbıyık	a) 1984 b) 1984 c) 1979 d) 1980 e) 1985 f) 1985 g) 1983 h) 1974 i) 1969 j) 1986 k) 1982 l) 1981 m) 1983 n) 1980 o) 1981 p) 1968 q) 1984	Tekirdağ F-type prison	Mr Mehmet Erbil İstanbul
41	**27892/08**	Ruşen Bayar	1972	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
42	**34205/08**	Azimet Ceyhan	1970	Kocaeli F-Type Prison	No representative

	Application no.	Name of Applicant	Date of birth	Present Address	Name of Representative
43	**35219/08**	Mehmet Reşit Arslan	1966	Ankara F-Type Prison	Ms Eren Keskin İstanbul
44	**35304/08**	Hakan Adıgüzel		Tekirdağ F-type prison	Mr Hakan Gündüz İstanbul
45	**36346/08**	a) Veysi Eren b) Uğur Medeni c) Mehmet Aladağ d) Resul Öz	a) 1984 b)1988 c) 1974 d) 1987	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
46	**36967/08**	Turan Günana	1981	Tekirdağ F-Type Prison	Mr Ercan Kanar İstanbul
47	**37175/08**	a) İshak Aybergüler b)Abdulhakim Kulık	a) 1988 b) 1984	Tekirdağ F-type prison	Mr Mehmet Erbil İstanbul
48	**38894/08**	Ali Dalaba	1974	Bolu F-Type Prison	Ms Menal Ayçiçek Diyarbakır
49	**38907/08**	Özgür Gürbüz	1975	Tekirdağ F-type prison	Ms Hacer Çekiç İstanbul
50	**39027/08**	Abdurrahim Akalp	1974	Kocaeli F-Type Prison	Mr İnan Akmeşe İstanbul
51	**41700/08**	Mehmet Aladağ	1974	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
52	**41706/08**	Mehmet Aladağ	1974	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
53	**45227/08**	Mehmet Çelebi Çalan		Sincan F-Type Prison	Mr Murat Vargün Troisdorf
54	**45325/08**	Hüseyin Avşar	1970	Buca Kırıklar F-type prison	No representative
55	**45873/08**	a) Bazi Aslan b) Abdulbaki Dal c) Diyaveddin Turhan d) Kasım Elçi e) Muhittin Altın f) Murat Arslan g) Zana Mazak h) Velat Esen i) Mehmet Murat Sözeri j) Nizamettin Özoğlu k) Ali Haydar Elyakut l) Engin Aydınalp m) Lokman Akbaba n) Turan Demir	a)1976 b) 1967 c) 1973 d) 1968 e) 1974 f) 1976 g) 1975 h) 1973 i) 1963 j) 1970 k) 1976 l) 1971 m) 1974 n) 1964	Kırıkkale F-Type Prison	Mr Murat Vargün Troisdorf
56	**45996/08**	Mehmet Faruk Aydın	1973	Tekirdağ F-type prison	Mr İnan Akmeşe İstanbul
57	**46012/08**	Keyfo Başak	1968	Bolu F-Type Prison	Mr Mehmet Erbil İstanbul

	Application no.	Name of Applicant	Date of birth	Present Address	Name of Representative
58	**46446/08**	Aydın Adıyaman	1974	Bolu F-Type Prison	No representative
59	**49761/08**	a) Fadime Özkan b) Resmiye Vatansever c) Deniz Tepeli d) Zeliha Bulut	a) 1975 b) 1973 c) 1977 d) 1973	Ankara Prison	Ms Gül Altay İstanbul
60	**50051/08**	a) Sami Dündar b) İbrahim Kanat	a) 1980 b) 1963	Tekirdağ F-type prison	Mr Mehmet Erbil İstanbul